

FEDERAL MARITIME COMMISSION

DOCKET NO. 21-09

**HAPAG-LLOYD, A.G. and HAPAG-LLOYD (AMERICA) LLC. —POSSIBLE
VIOLATIONS OF 46 U.S.C. § 41102(c)**

JOINT STATUS REPORT

The Bureau of Enforcement (BOE) and Respondent Hapag-Lloyd, A.G., and Hapag-Lloyd (America) LLC (collectively, “Hapag-Lloyd”) submit this Joint Status Report and state as follows:

Counsel for the BOE and Hapag-Lloyd (the Parties) conferred on December 13, 2021, to discuss matters pertaining to discovery as well as the proceeding in general with regards to the Initial Order.

The Parties discussed their mutual expectations of discovery but did not agree on any formal limitations. The Parties agreed to continue this discussion as discovery continues. The Parties agreed to resolve any stipulations of facts that are relevant to section 41102(c) claims after discovery. The Parties discussed the use of expert testimony and agreed to continue the discussion as discovery continues. The Parties discussed whether an oral hearing would be requested from either party, and counsel for Hapag-Lloyd confirmed that they would be inclined to request an oral hearing after discovery. The Parties agreed that the proceeding may be resolved by mediation or settlement.

As some of the above discussions continue, and to facilitate an efficient discovery, the Parties propose the following schedule of deadlines:

- a. February 7, 2021 Last date to serve written discovery requests¹;
- b. March 7, 2022 All discovery completed²;
- c. March 21, 2022 Joint Stipulation of Facts to be completed, if any;
- d. April 4, 2022 Last date to file dispositive motion, if any;

The foregoing schedule is based on the status quo and is subject to change pending decision on the Motion to Intervene by third-party Orange Avenue Express, Inc. currently before the Judge.

The Parties conferred on any anticipated impacts that the above proposed schedule may have on other proceedings and agreed that such impact discussions may be premature.

As it is now, the Parties do not foresee any impact on any demurrage and detention proceedings currently pending at the Federal Maritime Commission.

Finally, the Parties agree to service of all materials in this proceeding, including discovery requests and document production, via email to counsel of record.

¹ Per C.F.R. § 502.101 this date falls on Monday, February 7th because the 30-day time period to respond falls on Saturday, February 5th.

² Per C.F.R. § 502.101 this date falls on Monday, March 7th because the 90-day deadline for discovery falls on Sunday, March 6th.

DATED: December 16, 2021.

Respectfully submitted,



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MARYANNE MUNDY

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CERTIFICATE OF SERVICE

I hereby certify that on this 16th day of December 2021, a copy of the foregoing Joint Status Report has been served upon all counsel of record in accordance with 46 C.F.R. Part 502.

MARYANNE MUNDY

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Date: 2021.12.16
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Signing Attorney

Counsel for Respondents Hapag-Lloyd, A.G., and Hapag-Lloyd (America) LLC

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